

Protection against misuse: on POCSO Act, adolescent sex

Criminalising adolescent sex **will** undermine the aim of POCSO Act

The key **objective** of the Protection of Children from Sexual Offences (POCSO) Act, 2012 **is** the protection of children, but over the past few years, **courts** around the country and rights **activists** **have called for** some **exemptions**. Noticing a trend that **adolescents**, above 15 years but under 18, in **voluntary** relationships and having **consensual** sex **were often** being **persecuted**, the courts **sought** a review. **In that backdrop**, senior advocate Indira Jaising's written **submission** to the Supreme Court that consensual sex between teenagers aged 16-18 years must not be criminalised **is** a welcome move. She was appointed **amicus curiae** and her submissions are part of a **petition** filed by advocate Nipun Saxena. Her brief challenged the **designation** of 18 years as the age of consent. She said the only solution **lies** in declaring that sex between **consenting** adolescents between the age of 16, an almost universal age of sexual maturity, and 18, is not a form of 'abuse'. Ms. Jaising called for this exception to be read into the POCSO Act and Section 63 (sexual offences), of the Bharatiya Nyaya Sanhita (BNS). "Such an exception would **preserve** the protective **intent** of the **statute** while preventing its misuse against adolescent relationships that are not **exploitative** in nature," she said.

In a 2023 report, the Law Commission had said that it was against changing the age of consent. It advised "guided judicial **discretion**" instead, while **sentencing** in cases that involve children between 16 and 18 years in a voluntary, consensual relationship. Under the POCSO Act and under several **provisions** of the Indian Penal Code and the BNS, whoever **commits** a **penetrative** sexual **assault** on a child — who is anyone below 18 years — can face **stringent** punishment under Section 6 of the POCSO Act, Section 9 of the Prohibition of Child Marriage Act, 2006, and provisions of the IPC and BNS. A 16-year-old is considered a "child" under Section 2(d) of the POCSO Act and hence her consent does not matter. But **caveats** have to be **put in place** so that the **broad** intent of the law is **adhered to**, as the Madras High Court suggested in 2021, in Vijayalakshmi vs State Rep. The High Court said the age **difference** in consensual relationships **should** not be more than five years to ensure that a girl of an **impressionable** age is not **taken advantage of** by an older person. **Educating** adolescents about the law on sexual offences and its consequences **is** a must too. **Criminalising** normal adolescent behaviour **is** not the way to protect against **non-consensual**, exploitative sexual offences. **[Practice Exercise]**

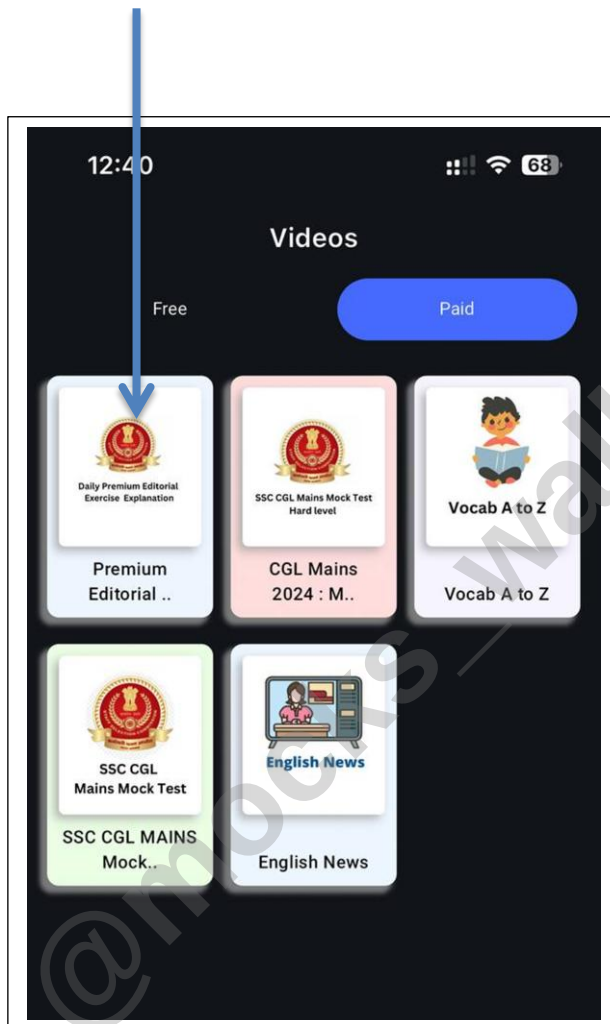
- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

Vocabulary

1. **Adolescent** (adjective) – teenage, youthful, juvenile, pubescent, immature किशोर
2. **Criminalise** (verb) – outlaw, ban, prohibit, penalise, incriminate अपराध घोषित करना
3. **Undermine** (verb) – weaken, impair, sabotage, erode, diminish कमज़ोर करना
4. **Objective** (noun) – goal, aim, target, purpose, intention उद्देश्य
5. **Activist** (noun) – campaigner, advocate, reformer, protester, supporter कार्यकर्ता
6. **Call for** (phrasal verb) – demand, urge, request, recommend, propose मांग करना
7. **Exemption** (noun) – exclusion, exception, immunity, relief, waiver छूट
8. **Voluntary** (adjective) – optional, unforced, intentional, discretionary, willing स्वैच्छिक
9. **Consensual** (adjective) – agreed, mutual, accepted, approved, cooperative सहमति पर आधारित
10. **Often** (adverb) – frequently, regularly, repeatedly, usually, commonly अक्सर
11. **Persecute** (verb) – harass, oppress, victimize, abuse, torment उत्पीड़न करना
12. **Seek** (verb) – pursue, request, search, strive, solicit मांग करना / ढूँढना
13. **In that backdrop** (phrase) – in that context, in that situation, against that background, under those circumstances, in light of that उस परिप्रेक्ष्य में
14. **Submission** (noun) – proposal, presentation, application, plea, declaration प्रस्तुति / निवेदन
15. **Amicus curiae** (noun) – legal advisor, court assistant, impartial contributor, neutral expert, friend of the court न्यायमित्र
16. **Petition** (noun) – appeal, application, plea, request, motion याचिका
17. **Designation** (noun) – classification, labeling, naming, title, assignment नामकरण / नियुक्ति
18. **Lie** (verb) – rest, exist, remain, reside, dwell स्थित होना
19. **Consenting** (adjective) – agreeing, approving, cooperative, willing, compliant सहमति देने वाला
20. **Preserve** (verb) – protect, maintain, safeguard, uphold, conserve बनाए रखना
21. **Intent** (noun) – purpose, aim, motive, plan, meaning इरादा
22. **Statute** (noun) – law, legislation, regulation, ordinance, act विधि / अधिनियम

23. **Exploitative** (adjective) – abusive, manipulative, oppressive, unfair, unjust शोषणकारी
24. **Discretion** (noun) – judgment, prudence, wisdom, sense, circumspection विवेक
25. **Sentence** (verb) – punish, convict, condemn, penalize, adjudge सज़ा सुनाना
26. **Provision** (noun) – clause, rule, regulation, stipulation, requirement प्रावधान
27. **Commit** (verb) – perform, perpetrate, carry out, execute, do करना (अपराध आदि)
28. **Penetrative Sexual assault** (noun) – a more serious offence than sexual assault.
29. **Assault** (noun) – attack, strike, offense, aggression, violation हमला
30. **Stringent** (adjective) – strict, harsh, tough, severe, rigid कड़ा
31. **Caveat** (noun) – warning, caution, condition, alert, restriction चेतावनी
32. **Put in place** (phrase) – establish, implement, enforce, apply, arrange लागू करना
33. **Broad** (adjective) – general, extensive, wide-ranging, sweeping, inclusive व्यापक
34. **Adhere** (to) (verb) – follow, obey, comply, conform, stick पालन करना
35. **Impressionable** (adjective) – sensitive, gullible, naive, persuadable, vulnerable प्रभाव में आने वाला
36. **Take advantage of** (phrase) – exploit, misuse, manipulate, deceive, trick शोषण करना
37. **Non-consensual** (adjective) – forced, unapproved, involuntary, imposed, coercive बिना सहमति के

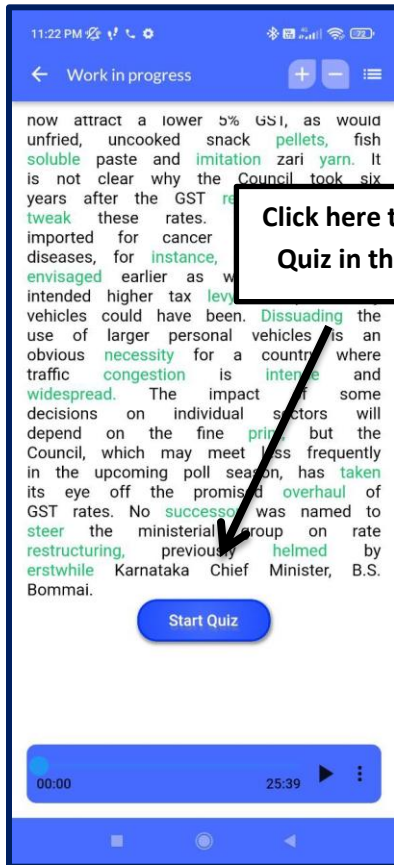
Video solution of Practice Exercise from this Editorial is exclusively available on App.



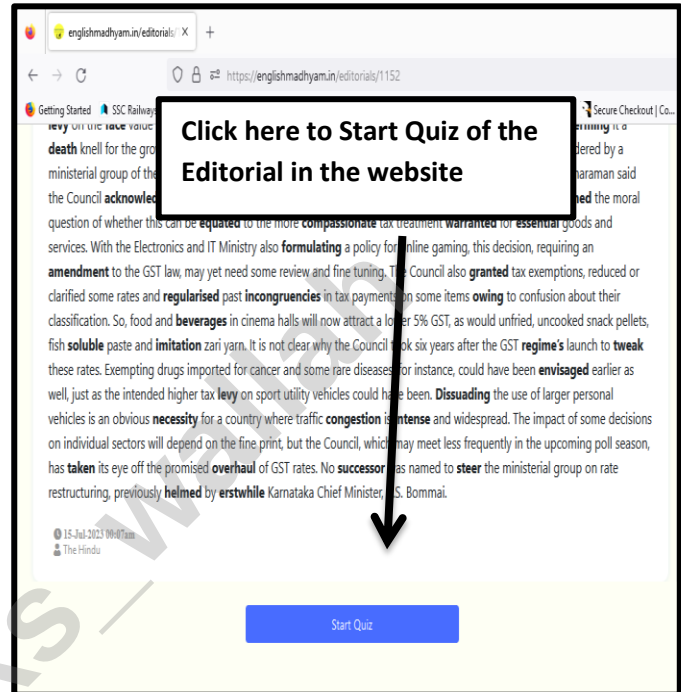
Summary of the Editorial

1. The POCSO Act, 2012 was enacted to protect children from sexual offences, but its implementation has raised concerns when applied to consensual adolescent relationships.
2. Courts and rights activists have increasingly noted that adolescents aged 15–18 in consensual relationships are being unfairly criminalised.
3. Senior advocate Indira Jaising, acting as amicus curiae, submitted to the Supreme Court that consensual sex between teenagers aged 16–18 should not be criminalised.
4. Her submission is part of a petition filed by advocate Nipun Saxena, challenging the current legal age of consent set at 18.
5. Jaising argued that declaring consensual sex between adolescents aged 16 and 18 as not abuse is the only logical remedy.
6. She proposed inserting an exception clause into both the POCSO Act and Section 63 of the Bharatiya Nyaya Sanhita (BNS).
7. Such an exception would retain the law's protective purpose while preventing misuse against non-exploitative adolescent relationships.
8. The Law Commission of India (2023) opposed changing the age of consent but recommended "guided judicial discretion" in sentencing for consensual cases.
9. Under current law, any sexual act with a person under 18 is treated as penetrative sexual assault, regardless of consent.
10. Sections of the POCSO Act, Prohibition of Child Marriage Act (2006), IPC, and BNS provide stringent punishments for such offences.
11. Section 2(d) of the POCSO Act defines anyone under 18 years as a child, rendering their consent legally irrelevant.
12. In *Vijayalakshmi vs State Rep* (2021), the Madras High Court suggested a five-year maximum age difference to safeguard younger adolescents from exploitation.
13. The editorial emphasizes that the law's broad intent must be preserved, but not at the cost of criminalising harmless adolescent behaviour.
14. There is a strong need to educate adolescents on sexual laws and their consequences to ensure informed and safe decisions.
15. The editorial concludes that criminalisation is not the solution to protect youth; rather, legal nuance and awareness are necessary to distinguish consensual relationships from exploitation.

Practice Exercise: SSC Pattern Based



Click here to Start
Quiz in the App



Click here to Start Quiz of the
Editorial in the website

[Click here to download App](#)

[Click here to visit website](#)



Learn Vocabulary Through Reading Articles

English Madhyam